

Evidentiary Objections

The Court rules on Respondent's Objections to the Declaration of Peter J. Nowicki as follows:

Objection No. 1. Sustained.

Objection No. 2. Sustained.

Objection No. 3. Sustained.

Objection No. 4. Sustained.

Objection No. 5. Sustained.

Objection No. 6. Sustained.

Objection No. 7. Sustained.

Objection No. 8. Sustained.

Objection No. 9. Sustained.

Objection No. 10. Sustained.

19. 9:00 AM CASE NUMBER: N24-1516

CASE NAME: DANIEL FISHER VS. DENNIS CALANO

***HEARING ON MOTION IN RE: ORDER TO SHOW CAUSE RE: CONTEMPT AGAINST RESPONDENT
DENNIS CALANO**

FILED BY: FISHER, DANIEL

TENTATIVE RULING:

Parties to Appear.

Courtroom Clerk's session

20. 10:00 AM CASE NUMBER: C22-01835

CASE NAME: MICHAELA STRAZNICKA VS. REYNA HIGUERA

JURY TRIAL 15 DAYS

FILED BY:

TENTATIVE RULING:

Parties to Appear.

21. 1:30 PM CASE NUMBER: C25-00144

CASE NAME: YONGCHAN PARK VS. MICHAEL YANG

*HEARING ON MOTION IN RE:

FILED BY:

TENTATIVE RULING:

Before the Court is Plaintiff Yongchan Park and Plaintiff Jihoon You (collectively, “Plaintiffs”)’s motion for summary adjudication (the “MSA”). Plaintiffs seek adjudication on two issues: (1) that Defendant Minhe, Inc. owed them certain duties under the IWC Wage Order 7 and the California Labor Code, and (2) that Defendants’ affirmative defense of family relationship fails as a matter of law.

First, the Court addresses the state of the papers. Plaintiffs filed their motion on October 2, 2025 with a hearing date of December 22, 2025. The hearing was later continued to January 12, 2026. In opposition, Defendants Michael Yang and Minhe, Inc. filed a Declaration of Richard D. Schramm as well as what purported to be memorandum of points and authorities in opposition (but was instead an opposition to Plaintiffs’ motion to compel further response to special interrogatories) on December 5, 2025. The Court ordered the parties to appear at the January 12, 2026 hearing to discuss the briefing on the motion and a schedule for the trial.

At that hearing, the Court directed the parties to submit binders of their filed papers. The Court also directed Defendants to file the opposition papers if not previously filed. The Court also continued the hearing on the motion to January 26, 2026. In response, on January 16, 2026 Defendants filed revised documents and new evidence in opposition rather than their as-served opposition documents.

The Court declines to consider these unauthorized new submissions. [See Rule 3.1300(d), California Rules of Court (CRC).] The Court’s order on January 12, 2026 contemplated that Defendants would file with the Court their as-served opposition papers. The Court did not authorize Defendants to submit new opposition documents and evidence. Accordingly, the pending motion is effectively unopposed.

For the following reasons, the MSA is **GRANTED**.

Brief Factual and Procedural Background

The instant case is an appeal of the Labor Commissioner’s ruling in WC-CM-761270, WC-CM-76127, and WC-CM-762296 pursuant to Labor Code § 98.2(a) by Defendants. Plaintiffs’ claims under the California Labor Code and the IWC Wage Orders arise out of their work at Rose and Mike’s Liquor between December 14, 2016 and October 28, 2018.

Rose and Mike’s Liquor is a business located at 12622 San Pablo Ave., Richmond, CA 94805. (UMF 1.1.) Rose and Mike’s Liquor is a retail establishment that sells wine, beer, spirits, groceries, and some apparel. (UMF 1.2.) Michael Yang has been the sole owner, officer, and director of Minhe, Inc. since Minhe, Inc. was created in 2014. (UMF 1.3.) Minhe, Inc. has owned and operated Rose and Mike’s Liquor continuously since 2014. (UMF 1.4.) Minhe, Inc. owned and operated Rose and Mike’s Liquor between December 1, 2016 and October 28, 2018. (UMF 1.5.)

Between December 14, 2016 and October 28, 2018, Plaintiff Yongchan Park performed labor in and around Rose and Mike’s Liquor. (UMF 1.6.) Between December 14, 2016 and October 28, 2018,